

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUBC026599: MATTHEW 02 INVESTMENT, LLC vs LEE F MAREK, et al.
08/25/2026 in Department 21
Motion for Attorney Fees/Costs

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Defendant Waldman’s motion for prevailing-party attorney fees.

Tentative Ruling:

Waldman is awarded fees in the amount of \$41,694.75, plus costs in the amount of \$1,548.69, a total of \$43,243.44. Plaintiff shall have 20 days from notice of this ruling to satisfy the award.

Counsel for Defendant Waldman is to give notice within two (2) court days.

Discussion:

As a general rule, each party to litigation must bear its own attorney fees. (*Hyduke’s Valley Motors v. Lobel Financial Corp.* (2010) 189 Cal.App.4th 430, 434.) However, a prevailing party may be entitled to recover attorney fees if authorized by contract, statute or law. (CCP §1033.5(a)(10); *Cargill, Inc. v. Souza* (2011) 201 Cal.App.4th 962, 966.)

Here, plaintiff points to two contractual provisions. First, in the underlying lease agreement itself, the parties all agreed that “in the event of any litigation between the parties hereto arising out of or in connection with this Lease, the prevailing party will be reimbursed for all reasonable costs, including, but not limited to, reasonable attorneys’ fees, incurred in connection with such proceedings.” (Lease, Para 19.5.) Second, in the personal guarantee, Waldman and the previous landlord agreed that “the party or parties prevailing in such [legal proceeding concerning tis guarantee or the lease] will be entitled to reasonable attorneys’ fees and all related costs incurred in connection with such proceedings.” (See Sec. 9.) Both clauses would be triggered here.

Waldman is the prevailing party on both the lease agreement and the personal guarantee because he is “a defendant as against those plaintiffs who do not recover any relief against that defendant.” (CCP §1032(a)(4).) For this proposition, plaintiff does not object.

Defense counsel’s blended hourly rate (\$475) is more than reasonable for this type of work in this legal community. For this proposition, plaintiff also does not object (see Opp. Pg. 6).

Where the parties differ is over the 109 hours expended by defense counsel to bring about a dispositive victory. Plaintiff takes specific issue time billed for discovery, attending the hearing on co-defendant’s demurrer, review of co-defendants written discovery, and preparing this motion for attorney fees and costs.

The general rule is this: counsel is entitled to reimbursement for legal services that are “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (CCP §1033.5(c)(2).) To determine what is, and is not, reasonably necessary to the conduct of the litigation, courts consider the development of the case, the complexity of the work, the experience of the lawyers, how long the court estimates it should have taken to do the work, and any evidence of padding, over-staffing, duplication or marked inefficiency. (See *Donahue v. Donahue* (2010) 182 Cal.App.4th 259, 271-272; *Maughan v. Google Technology, Inc.* (2006) 143 Cal.App.4th 1242, 1249.) Block-billing, while not per se improper, is generally frowned upon in fee motions when the blocks contain blended services. (See *Jaramillo v. County of Orange* (2011) 200 Cal.App.4th 811, 830.) When the court cannot reasonably determine the propriety of some of the billing line items, an “across the board” reduction is warranted. (*Thayer v. Wells Fargo Bank* (2001) 92 Cal.App.4th 819, 840.)

On balance, this Court concludes that the motion for fees should have necessitated no more than 5 hours of legal time for Ms. Anderson and 2 hours’ time for Mr. Dickerson. While preparing discovery that does not go out can be reasonably necessary because the mere effort to draft discovery questions helps refine the issues for the attorney, but that effort should not take more than 5 hours for this type of case (especially given the obvious issues with trying to enforce the stale guarantees). The block-bill entry for discovery and cross-complaints is difficult to decipher, and as such that will be cut as well. The balance of the services are deemed to be reasonably necessary.

In sum, after a detailed review of the billing statements the Court finds reasonable attorney fees as follows:

Mr. Dickerson – 13.97 hours at \$500 per hour = \$6,985.00

Mr. Gustafson – 59 hours at \$500 per hour = \$29,500.00

Ms. Anderson – 11.69 hours at \$450 per hour = \$5,260.50

That results in a fee award of approximately \$41,694.75 (\$6,985 + \$29,500 + \$5,260.50 = \$41,694.75). The Court therefore GRANTS Defendant Waldman’s motion for attorney fees in PART, in the amount of \$41,694.75, plus the litigation costs of \$1,548.69, which plaintiff did not dispute.

Defendant to give notice.